

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



February 25, 2019

The Honorable Steve Hermanson
Judge of the Superior Court
County of Amador
500 Argonaut Lane
Jackson, CA 95642

Re: Michael E. Perry
CDCR No: E82042
Case No: 04CR7025
Date of Sentence: January 27, 2005

Dear Honorable Steve Hermanson:

The purpose of this letter is to provide the court with authority to resentence inmate Michael E. Perry, pursuant to Penal Code (PC) Section 1170, subdivision (d)(1). PC Section 1170, subdivision (d) provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court may recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

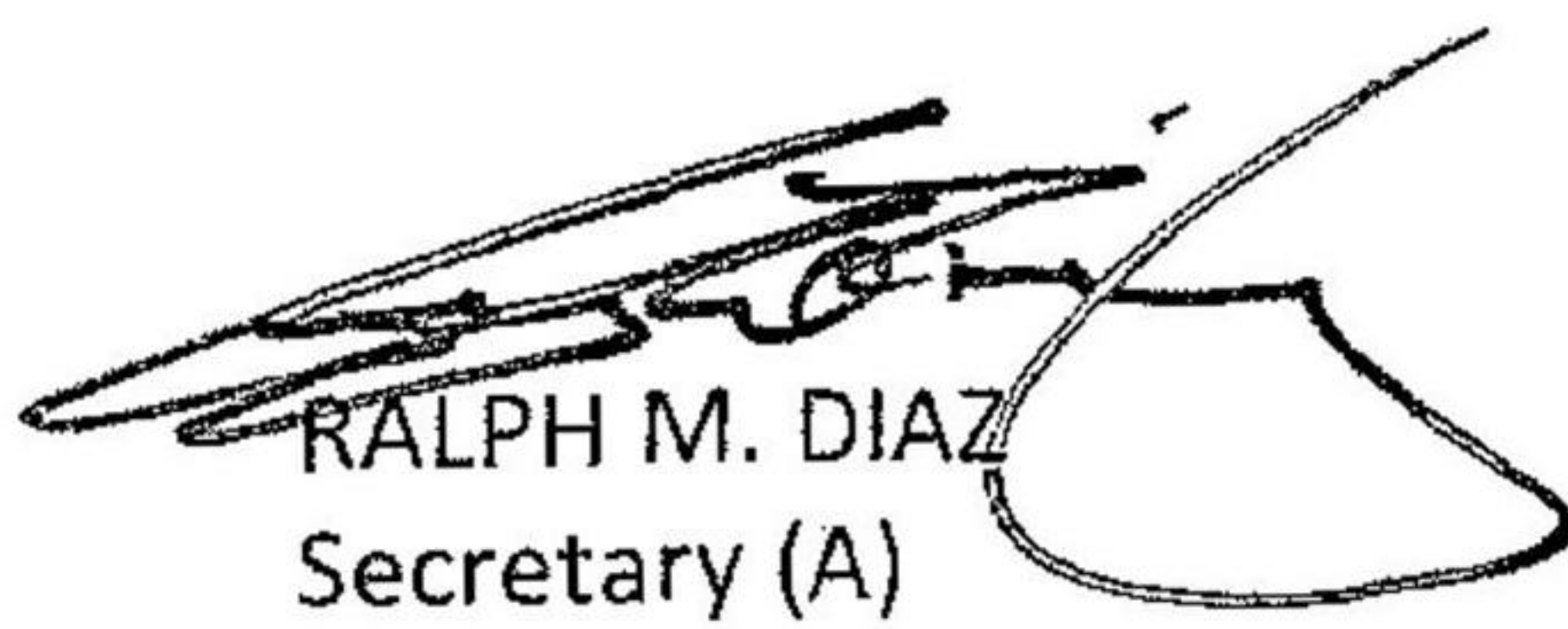
Inmate Perry's disciplinary history from February 1, 1993 to March 2003 is extensive, with 31 serious Rules Violation Reports consisting of Refusal to Submit Urine Samples, Possession of Tobacco, Attempted Murder of An Inmate, Refusal to Work, Trafficking Narcotics, and Possession of An Inmate Manufactured Weapon. Inmate Perry was considered a program failure until he began to take advantage of vocational, educational, religious and self-help opportunities. Since March of 2003, Perry has remained disciplinary free and has Certificates of Achievement and Completions in 28 programs and Self-Help classes many of which are related to Anger Management, Electronics, and Substance Abuse Disorders. On July 30, 2013, Perry earned his High School Equivalency Diploma Certificate and Inmate Perry has now completed 15 classes from the Creekside Adult School and other learning centers. Inmate Perry has received 15 Laudatory Chrono's from various; staff two of the Chrono's noted that Perry had made life altering changes and stopped using drugs therefore staff felt Perry had the attitude and ability to be a productive member of society.

CDCR Staff have stated Perry has overcome his addiction to drugs and alcohol and is now recognized as one of the best programming inmates at Mule Creek State Prison (MCSP).

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Having reviewed the enclosed documentation, it appears that inmate Perry's sentence warrants the attention of the court. Pursuant to PC Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced.

Sincerely,



RALPH M. DIAZ
Secretary (A)

Enclosures:

Abstract of Judgment - Determinate
Minute Order
Court Information-Charging Documents
Cumulative Case Summary

cc: Rob Klotz, County Court Executive Officer
Amador County District Attorney's Office
Amador County Public Defender's Office